

 Internal Case Management System Worksheet - Case Closing					Top Allegation USE OF FORCE - LEVEL 3	Group G54-GROUP 54 - FORCE Date of This Report 11/14/2018	
Date Reported 03/07/2018	Date Assigned 03/07/2018	IAB Log No. 2018-9106	Case No. (G54) FI- 2018-559	Folder Type FORCE INVESTIGATION	Preliminary Case Type FORCE INVESTIGATION	Follow-Up No.	Worksheet Tracking No. 3336171

Topic/Subject (Case Closing) CASE CLOSING-UNSUBSTANTIATED	Activity Date 11/14/2018	Activity Time 17:21
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Referred to Group -	Conferred With	Next Review Date
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Closing Statement Case#: FI-2018-559 Log#: 2018-9106 Subject Officers: 1)PO Joseph Recca, Tax#963225, 25th Precinct Date of Appointment: 01/04/2017 Probation (at the time of the incident): Yes Current Duty Status: Full Duty/ Active 2)PO Conor Kubic, Tax#955026, 25th Precinct Date of Appointment: 7/09/2013 Probation (at the time of the incident): No Current Duty Status: Full Duty/ Active Date Case Received: March 14, 2018 Date of Occurrence: March 7, 2018 Administrative Statute of Limitation Expires: September 7, 2019 Case Classification: C-2 Programmatic Review: NO Investigator: Det. Mohammed Hussain, Tax#942784 Team Leader: Lt. Shamsul Haque, Tax#933830 Overall Disposition: Unsubstantiated Details: Log # 2018-9106 On March 7, 2018, Deputy Inspector Theodore Federoff of the 25th Precinct reported to the Command Center that while PO Joseph Recca and PO Conor Kubic were conducting a Vertical a [REDACTED] they observed [REDACTED] (M/H/41) in the stairwell with a clear plastic bag containing alleged heroin in his hands. DI Federoff stated that when the officers approached [REDACTED] in order to place him under arrest, [REDACTED] initially put his hands in his pockets and refused to take them out. [REDACTED] then took his hands out, resisted arrest by flailing his arms and kicked at the officers. DI Federoff stated
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that PO Recca and PO Kubic then conducted a forcible takedown on [REDACTED] and placed him in cuffs. DI Federoff stated that [REDACTED] complained of back pain and stated that it was caused from the officers taking him down to the ground. [REDACTED] was then transported by EMS to Metropolitan Hospital where [REDACTED] diagnosed him with 2 fractured ribs (11th & 12th). Call out # 2018-9106 was conducted by IAB Group 54.

Identification and Interview of the Complainant:

Complainant, [REDACTED] is known to the Department under NYSID [REDACTED]. [REDACTED] resides at [REDACTED]. [REDACTED] was interviewed by Group 54 Investigators on March 8, 2018 and on May 24, 2018.

In sum and substance [REDACTED] stated that on March 7, 2018 at approximately 2149 hours, he was inside of [REDACTED] on the seventh floor stairwell. While he was on the seventh floor stairwell, he met an unknown male who engaged in a conversation with him. [REDACTED] stated that shortly thereafter two male officers approached him, asked him to take his hands out of his pockets, and questioned him as to what he was doing at the location. [REDACTED] stated that at that point he informed the officers that he was talking to the unknown individual. He then took his hands out of his pockets and showed the officers that he had Skittles on one hand and his headphones on another. [REDACTED] stated that he then put his hands back in his pockets; however, one of the officers questioned him as to why he put his hands back in his pockets. The officer then approached him and reached for his right hand. [REDACTED] stated that at that point he pulled back preventing the officer from grabbing his hand and told the officer that he is not allowed to do that. [REDACTED] stated that he was willing to provide pedigree information and ID. [REDACTED] stated that at that point the officer asked him if he was resisting arrest and subsequently placed cuffs on his right hand. [REDACTED] stated that when the officer placed the cuffs on his right hand, he stepped back away from the officer preventing him to place him under arrest. [REDACTED] stated that the other officer then grabbed his left hand and conducted a forcible take down on him. [REDACTED] stated that the officers then forced his hands together and cuffed him. [REDACTED] stated that as he was being placed in cuffs on the floor, PO Recca got on top of him, kneed him once and punched him with a closed fist against his ribs several times while his partner was holding his legs. [REDACTED] stated that PO Recca's partner told PO Recca that "that's enough" and sent PO Recca to the hallway. [REDACTED] stated that he was then brought up from the ground, taken to the elevator and was transported back to the 25 Precinct. [REDACTED] stated that the other unknown male ran away as the officers were attempting to place him under arrest. [REDACTED] stated that after he went to the 25 Precinct, he was immediately taken to Metropolitan Hospital and was treated for two fractured ribs. [REDACTED] did acknowledge to the investigators that he is a heroin user, that he had shot up heroin earlier in the day and that he did have heroin in his left jacket pocket that his hands were in.

A background check on [REDACTED] revealed that he has a total of [REDACTED]:

[REDACTED]

[REDACTED] has no prior IAPRO, ICMS and CCRB history.

Identification and Interview of Witnesses:

> There were no witnesses located or identified in regards to this case.

Canvass:

> Canvass for witnesses: This incident took place on the 7th floor stairwell inside of [REDACTED]. Although a canvass was conducted, there was no one identified who witnessed the incident. The identity of the other person present was not made.

> Canvass for video: There are no videos at the apprehension location.

1) There was 1 video obtained from the CCRB case file which shows [REDACTED] rear cuffed being brought into the elevator and out of the elevator by uniformed officers.

A review of the video did not disclose any misconduct committed by the officers.

Review of Department Records:

> Arrest Report # [REDACTED]: [REDACTED] was arrested on March 7, 2018. [REDACTED] was charged with Assault 2 Intent to Injure Police/Fireman, Resisting Arrest, Obstruct Governmental Administration, and Criminal Possession of Control Substance -7th.

Details: At T/P/O Arresting Officer did observe the individual in possession of a plastic bag of heroin in his right hand and in plain view through the stairwell door. Upon approach, defendant did fight and resist officers in an attempt to flee. The defendant kicked, twisted, and flailed his arms at Officers trying to handcuff the Defendant. While handcuffed, the Defendant continued to kick Officers striking them in the legs and torso. Search incidental to a lawful arrest, Officers recovered an orange pill container with a plastic bag containing heroin. Warrant check conducted, negative results.

> TRI # [REDACTED]
Member Reporting: PO Conor Kubic Tax # 955026, 25th Precinct
Force Against MOS: Pushing, Shoving and Foot Strike.
Actions taken by MOS: Forcible Take Down.
Reason MOS used force: Self Defense, Overcome Resistance or Aggression.
Civilian/Subject: [REDACTED] DOB: [REDACTED]
Civilian Injury: Complaint of Substantial Pain.
How Sustained: Unintentional Action By Non MOS: Yes
MOS Injured Attempting to Apprehend /control Subject: Yes
Injury Sustained by MOS: Substantial pain to left knee.

> TRI # [REDACTED]
Member Reporting: PO Joseph Recca Tax # 963225, 25th Precinct
Force Against MOS: Pushing, Shoving and Foot Strike.
Actions taken by MOS: Forcible Take Down.
Reason MOS used force: Self Defense, Overcome Resistance or Aggression.
Civilian/Subject: [REDACTED] DOB: [REDACTED]
Civilian Injury: Complaint of Substantial Pain. Unintentional Action by Non MOS: Yes
MOS Injured Attempting to Apprehend /control Subject: No

> Aided Report # 2 [REDACTED]
Incident Date: 03/07/2018, 21:50 Wednesday
Aided: PO Kubic, Conor, Tax# 955026, Command 025
MOS on Duty: Yes
Reporting Officer: Sgt. Bradshaw, Brian, Tax#948306, Command 025
Details: At T/P/O while effecting an arrest, above MOS was kicked by perpetrator on the left leg causing substantial pain, redness and bruising.

> Line of Duty Report/Witness Statement
MOS: PO Kubic, Conor, Tax#955026, Command 025
Date: 03/07/2018, Time:2200
Assignment: Response 1
Location/ Address: Stairwell of [REDACTED]
Hospital: Mount Sinai
Diagnosis: Pain, bruising, and redness to the left leg and knee.
Witness: PO Recca, Joseph Tax#963225, Command 025
Witness Statement: When apprehending suspect, perpetrator started to flail arms and kick PO Kubic. After perpetrator was put in cuffs, he laid on his back and continued to kick PO Kubic. Perpetrator did kick PO Kubic in the leg.
Patrol/ Command Supervisor Report of Injury: Upon apprehension of a violent perpetrator, whom in the course of apprehension said perpetrator kicked PO Kubic about the left Leg and knee multiple times causing pain, bruising and redness. Line of duty designation recommended.

> Command Log: The Command Log for March 7, 2018 was reviewed and found to detail that at 2208 hours, it was recorded that PO Kubic arrested [REDACTED] inside of [REDACTED] at 2204 hours for CPCS. The physical and mental condition of [REDACTED] was "Apparently Normal." Property Invoice was issued. [REDACTED] requested medical attention and at 2218 hours, [REDACTED] was transported to Metropolitan Hospital.

> Radio Transmissions: A review of the Radio Transmission (ICAD#d18030725133) disclosed that on March 7, 2018, 25 Precinct Response 1 did call for a 10-85 at [REDACTED] in regards to having 1 perpetrator ([REDACTED]) in custody. Patrol Supervisor, Sector B and Response 3 of the 25 Precinct responded to the location. All MOS were accounted for and the male perpetrator was transported back to the 25 Precinct by Response 3. Radio transmission further disclosed that the 25 Precinct Base requested for EMS to respond for the perpetrator. The perpetrator was transported to Metropolitan Hospital.

> Review of Medical Treatment of Prisoner Form:
Prisoner: [REDACTED]
Arresting Officer: PO Kubic, Tax 955026
Escort Officer: PO Recca, Tax 963225
Charge: Resisting Arrest/CPCS
Transported To: Metropolitan Hospital
Nature of Illness/Injury: Back Pain
Remarks: Blank

> Review of Medical Records:
[REDACTED] was treated at Metropolitan Hospital Center on March 7, 2018. Medical records show that a cat scan was performed on [REDACTED] and that he was diagnosed with minimally displaced fractures of the 11th and 12th ribs by [REDACTED] Habal. No other fractures, broken bones or stitches were noted on the medical records.

Computer Related Background Checks:

A background check was conducted on PO Joseph Recca, Tax#9563225, currently assigned to the 25th Precinct, disclosed that he was appointed on January 4, 2017. PO Recca has no monitoring records.

IAPRO: There are no cases listed on IAPRO history.

ICMS: 0 C Cases, 0 M Cases, 1 OG Cases, and 1 FI Case (this case). There are no prior FI cases.

CPI: Consistent with ICMS and IAPRO.

CCRB: There are no prior cases on file

A background check was conducted on PO Conor Kubic, Tax#955026, currently assigned to the 25th Precinct, disclosed that he was appointed on July 9, 2013. PO Kubic has no monitoring records.

IAPRO: There are no cases listed on IAPRO history.

ICMS: 0 C Cases, 0 M Cases, 5 OG Cases, and 1 FI Case(this case). There are no prior FI cases.

CPI: Consistent with ICMS and IAPRO.

CCRB: There are no prior cases on file

Conferrals Conducted:

> Intel Results:

1) Intel Agent 1 stated that Subject Officer PO Kubic keeps to himself and minds his own business. Agent stated that PO Recca is described as a good, active, hands on officer who likes to collar. Agent stated that the rumor in the Command is that PO Recca and PO Kubic responded to an 85 where the perpetrator was heavy set and where everyone was jumping in to gain control of the perpetrator.

2) Intel Agent 2 stated that PO Kubic is an active cop who is well liked in the command. Agent stated that PO Recca is a rookie who is still learning the job, adjusting and gets along with others. Agent had no knowledge of the allegation, Use of Force - Level 3 in which [REDACTED] stated that he sustained 2 fractured ribs. Agent stated that although the Officers are known to be active, neither are known to be heavy handed and that Agent believes that any force used would have been minimal and necessary.

> District Attorney's Office: ADA Cuevas (Manhattan) declined jurisdiction in this matter on August 6, 2018.

> Corporation Council: I conferred with Ms. [REDACTED] in regards to the Notice of claim filed by [REDACTED] personally filed a Personal Injury Claim Form with the NYC Comptroller Office on March 3, 2018. [REDACTED] indicated that the officers caused the fracture to his left 11th and 12th ribs. [REDACTED] did not claim any amount of reparation money for his injuries.

> Proactive Measures: There were no Selective Arrest Enforcement or Selective Warrant Enforcement operations pursuant to this case.

Other Information of Investigative Value:

> Criminal Case Status: On April 12, 2018 [REDACTED] pleaded guilty to Criminal Possession of a Controlled Substance associated with Docket # [REDACTED] and was sentenced to 45 days imprisonment.

> CCRB case # 201802133: The case was investigated by Investigator Miriam Lynch and closed it as Victim Uncooperative on June 1, 2018. Although Investigator Lynch was able to conduct a telephone interview with [REDACTED] he did not cooperate with CCRB investigators to sign verification and HIPAA forms. No subjects or witnesses were interviewed. The CCRB investigation did not reveal any new information.

Patrol Guide 206-13 Hearings:

PO Joseph Recca was interviewed as a subject officer on September 25, 2018 by Lt. Haque and Det. Hussain at [REDACTED]. PO Recca stated that on Wednesday March 7, 2018, at approximately 2149 hours he and PO Kubic were inside of [REDACTED] on routine patrol at the building which is a drug prone location. PO Recca stated that on the stairwell of the seventh floor, they observed [REDACTED] with narcotics on his hands in plain view. [REDACTED] was with another unknown male who fled upon their approach. PO Recca stated that they approached [REDACTED] informed him that he was going to be placed under arrest and gave him clear orders to put his hands behind his back. [REDACTED] refused, put his hands inside his pockets and resisted from being arrested. PO Recca stated that he and PO Kubic then grabbed him by his hands and attempted to place him in cuffs. [REDACTED] punched PO Recca in the stomach and kicked PO Kubic on his knees. PO Recca stated that he then punched [REDACTED] once in the chest area and grabbed [REDACTED] from the back in a bear hug. [REDACTED]

█████ kicked off the wall causing PO Recca to fall backwards onto the ground with █████ landing on top of him. PO Recca stated that immediately turned over on one side of █████ and with the help of PO Kubic on the other side, they were able to place █████ in cuffs. PO Recca stated that even with the cuffs on, █████ was non-compliant and aggressive. PO Recca stated that after █████ was cuffed, he was brought upright and was seated on the stairs.

PO Recca stated that he did not get on top of █████ that he did not punch, strike, kick or knee █████ in his ribs and that he did not witness anyone else do the same. PO Recca stated that he did not punch strike or kick █████ after he was cuffed and that he did not witness anyone else do the same. PO Recca stated the situation was under control before the arrival of any other officers. PO Recca stated that █████ was wearing a black back brace which is normally used by people with back related injuries. PO Recca believes that the back brace █████ wore was indicative of a pre-existing back injury that he had. PO Recca believes that the pain could have been from a prior injury. PO Recca stated that █████ did not state to him that he sustained any injuries or complain of any pain. PO Recca stated that he does not know how █████ fractured his ribs and how he sustained his injuries.

PO Conor Kubic was interviewed as a subject officer on September 25, 2018 by Lt. Haque and Det. Hussain at █████
█████ PO Kubic stated that on Wednesday March 7, 2018, at approximately 2149 hours he and PO Recca were inside of █████ on routine patrol at the building which is a drug prone location. PO Kubic stated that on the stairwell of the seventh floor, they observed █████ with narcotics and syringes on his hands in plain view. █████ was with another unknown male who was seated on the stairs. PO Kubic stated that they approached █████ informed him that he was going to be placed under arrest and gave him clear orders to put his hands behind his back. █████ refused and put his hands inside his pockets. PO Kubic stated that he then grabbed the right hand of █████ as PO Recca grabbed the left hand and attempted to place him in cuffs, however; █████ resisted and became tensed. PO Kubic stated that as they were struggling to get █████ hands, he took the narcotics and put it inside his mouth. █████ then spit the drugs onto the stairs and directed the other unknown male to grab the drugs. PO Kubic stated that he then dived onto the stairs and grabbed the drugs to prevent the other individual from getting possession of it. PO Kubic stated that as they were struggling with █████ the other individual left the location without incident. PO Kubic stated that PO Recca tried to take █████ down to the ground in a bear hug in a controlled manner in order to restrain him, however; █████ kicked off the wall causing PO Recca to fall to the ground and █████ to land on top of him. PO Kubic stated that as PO Recca was on the ground with █████ he believes that PO Recca punched █████ once on the torso in order to gain control of him. PO Kubic stated that █████ kicked him while he was on the ground. PO Kubic stated that he then placed his knees on the back of █████ as he was lying on his stomach in order to gain control by pushing █████ body weight down to the ground so that he would not get back up and continue to fight back. PO Kubic stated that he did not use his knees to strike █████ PO Kubic stated that they placed █████ in cuffs while he was on the ground. PO Kubic stated that after he placed █████ in cuffs, PO Recca went into the hallway and radioed for back up. █████ was then brought upright and was seated on ground. PO Kubic stated that █████ was not compliant, continued to kick him and constantly tried to get up from the floor as he was trying to keep him stable on the ground. PO Kubic stated that the struggle to cuff █████ took about 5 minutes. PO Kubic stated that █████ complained of his back and yelled "my back, my back, I'm hurt, I'm hurt."

PO Kubic stated that he did get on top of █████ however; he did not punch, strike, kick or knee █████ in his ribs and that he did not witness anyone else do the same except that one time PO Recca punched █████ in the torso area during the struggle to cuff him. PO Kubic stated that he did not punch strike or kick █████ after he was cuffed, that he did not witness anyone else do the same and that he did not warn PO Recca to stop hitting █████ before or after he was cuffed. PO Kubic stated that PO Recca went to the hallway to radio for back up and not because he was preventing PO Recca from hitting █████ after he was cuffed. PO Kubic stated that there were no other officers with them and that the situation was under control before the arrival of any other officers. PO Kubic stated that the other officers came in the aftermath of the situation and that they helped transport █████ back to the 25th Precinct without incident. PO Kubic stated that █████ was wearing a black back brace which is normally used by people with back related injuries. PO Kubic believes that the back brace █████ wore was indicative of a pre-existing back injury that he had. PO Kubic believes that the pain could have been from a prior injury. PO Kubic stated that █████ did complain of pain to his back after he was placed in cuffs. PO Kubic stated that he does not know how █████ fractured his ribs. PO Kubic believes that it was a prior injury. PO Kubic stated that he sustained pain, bruising and redness to his left knee due to █████ kicking him multiple times on that knee during and after placing him in cuffs on his knees.

Supervisory Deficiencies: There were no supervisory deficiencies noted in this investigation.

Conclusion:

On March 7, 2018, Deputy Inspector Theodore Federoff reported to the Command Center that on March 7, 2018, █████ sustained an injury in connection with arrest # █████ for Assault 2: Injury to Police/Fireman, Resisting Arrest, Obstruct Governmental Administration 2nd, and Criminal Possession of Controlled Substance 7th, inside of █████ Medical records from Metropolitan Hospital Center revealed that █████ sustained two fractured ribs (11th & 12th ribs). █████ was interviewed and stated that when PO Recca and PO Kubic attempted to arrest him, he did have heroin in his pockets. He stated his hands were in his pockets and he pulled back to prevent the officers from grabbing his hands. █████ further stated that at one point the officers conducted a forcible take down on him where PO Recca got on top of him, kned him once and punched him with a closed fist several times in his back as PO Kubic was holding his legs. The officers were interviewed in regards to this incident. PO Recca stated when he and PO Kubic were conducting routine patrol duties inside the location, they observed █████ on the 7th Floor stairwell with narcotics on his hands in plain view. PO Recca stated that as

they went to arrest [REDACTED] he put his hands in his pockets, was non-compliant and was resisting arrest. PO Recca stated that as they attempted to get [REDACTED] hands, he punched him in the stomach and kicked PO Kubic in the knee. PO Recca stated that he then punched [REDACTED] once in the chest area, and then grabbed [REDACTED] in a bear hug. He stated [REDACTED] kicked off the wall causing both of them to fall to the ground. PO Kubic stated that he then got on top of [REDACTED] used his knees against [REDACTED] back in order to control him as he and PO Recca placed him in cuffs. Both officers denied punching, kicking or kneeling [REDACTED] in his back. Both officers stated that they observed [REDACTED] was wearing a black back brace which is normally used by people with back injuries and therefore they believe that the back brace worn by [REDACTED] was indicative of a pre-existing back injury. There are no witness or video recording of the incident to corroborate with the allegations made by [REDACTED]. This investigation disclosed that there is insufficient evidence to prove or disprove that the force utilized by the subject officers was unnecessary or excessive while attempting to place [REDACTED] under arrest. As such the allegation of Force - Physical Force will be closed as Unsubstantiated. The overall case disposition is Unsubstantiated.

Subjects Involved

Name 955026 CONOR KUBIC POM (025-025 PRECINCT)	Status UNIFORM MEMBER OF SERVICE	Sex MALE	Race WHITE	Dob [REDACTED]
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Allegations

1 Full Allegation FADO Force - Physical Force	Classification Arrest Effectuated	Allegation Index O-Other	Allegation Date 03/07/2018	Finding 04 - Info. and Intelligence	Finding Date 09/25/2018
Comments Referred to CCRB for investigation under CCRB case # 2018-02133. Therefore, the allegation FADO Force-Physical Force will be closed as Information and Intelligence.					
2 Full Allegation Aided MOS - Injured - Result of Taking Police Action	Classification NOTIFICATION/Additional Information	Allegation Index ADD-Additional Information	Allegation Date 03/08/2018	Finding 04 - Info. and Intelligence	Finding Date 09/25/2018
Comments On March 7, 2018, while affecting the arrest of [REDACTED] PO Kubic was kicked on the left leg and left knee by [REDACTED] several times. PO Kubic was treated at Mount Sinai St Luke's Hospital in regards. PO Kubic was diagnosed with substantial pain, redness and bruising to the left leg and knee. Therefore, the allegation of Aided MOS-Injured-Result of Taking Police Action will be closed as Information and Intelligence.					
3 Full Allegation Use of Force - Level 3	Classification Arrest Effectuated	Allegation Index Force Investigation Notification	Allegation Date 03/08/2018	Finding 04 - Info. and Intelligence	Finding Date 09/25/2018
Comments This investigation disclosed that on March 7, 2018, based on the use of force investigative responsibilities and reporting guide, this matter was investigated by the Internal Affairs Bureau as a Level 3 Use of Force due to the injuries sustained (fractured 11th & 12th ribs) in connection with this incident. TRI report # [REDACTED] was prepared in connection with this incident. As such, the allegation of Use of Force- Level 3 will be closed as Information and Intelligence.					
4 Full Allegation CCRB Informational Purposes Only -	Classification NOTIFICATION ONLY	Allegation Index CCRB INFO ONLY	Allegation Date 03/14/2018	Finding 04 - Info. and Intelligence	Finding Date 09/25/2018
Comments Referred to CCRB for investigation under CCRB case # 2018-02133. Therefore, the allegation CCRB Information Purposes Only will be closed as Information and Intelligence					
5 Full Allegation Force - Physical Force	Classification Arrest Effectuated	Allegation Index O-Other	Allegation Date 10/04/2018	Finding 12 - Unsubstantiated	Finding Date 09/25/2018

	Comments On March 7, 2018, Deputy Inspector Theodore Federoff reported to the Command Center that on March 7, 2018, [REDACTED] sustained an injury in connection with arrest # [REDACTED] for Assault 2: Injury to Police/Fireman, Resisting Arrest, Obstruct Governmental Administration 2nd, and Criminal Possession of Controlled Substance 7th, inside of [REDACTED]. Medical records from Metropolitan Hospital Center revealed that [REDACTED] sustained two fractured ribs (11th & 12th ribs). [REDACTED] was interviewed and stated that when PO Recca and PO Kubic attempted to arrest him, he did have heroin in his pockets. He stated his hands were in his pockets and he pulled back to prevent the officers from grabbing his hands. [REDACTED] further stated that at one point the officers conducted a forcible take down on him where PO Recca got on top of him, kned him once and punched him with a closed fist several times in his back as PO Kubic was holding his legs. The officers were interviewed in regards to this incident. PO Recca stated when he and PO Kubic were conducting routine patrol duties inside the location, they observed [REDACTED] on the 7th Floor stairwell with narcotics on his hands in plain view. PO Recca stated that as they went to arrest [REDACTED] he put his hands in his pockets, was non-compliant and was resisting arrest. PO Recca stated that as they attempted to get [REDACTED] hands, he punched him in the stomach and kicked PO Kubic in the knee. PO Recca stated that he then punched [REDACTED] once in the chest area, and then grabbed [REDACTED] in a bear hug. He stated [REDACTED] kicked off the wall causing both of them to fall to the ground. PO Kubic stated that he then got on top of [REDACTED] used his knees against [REDACTED] back in order to control him as he and PO Recca placed him in cuffs. Both officers denied punching, kicking or kneeling [REDACTED] in his back. Both officers stated that they observed [REDACTED] was wearing a black back brace which is normally used by people with back injuries and therefore they believe that the back brace worn by [REDACTED] was indicative of a pre-existing back injury. There are no witness or video recording of the incident to corroborate with the allegations made by [REDACTED]. This investigation disclosed that there is insufficient evidence to prove or disprove that the force utilized by the subject officers was unnecessary or excessive while attempting to place [REDACTED] under arrest. As such the allegation of Force -Physical Force will be closed as Unsubstantiated.					
6	Full Allegation Prisoner Incident - Injured in NYPD Custody - MOS Involved	Classification Arrest Effected	Allegation Index CI-Injured in Custody	Allegation Date 11/08/2018	Finding 04 - Info. and Intelligence	Finding Date 09/25/2018
	Comments On March 7, 2018, Deputy Inspector Theodore Federoff reported to the Command Center that on March 7, 2018, [REDACTED] sustained an injury in connection with arrest # [REDACTED] for Assault 2: Injury to Police/Fireman, Resisting Arrest, Obstruct Governmental Administration 2nd, and Criminal Possession of Controlled Substance 7th, inside of [REDACTED]. Medical records from Metropolitan Hospital Center revealed that [REDACTED] sustained two fractured ribs (11th & 12th ribs). As such, the allegation of Prisoner Incident - Injured in NYPD Custody - MOS Involved will be closed as Information and Intelligence.					
Name 963225 JOSEPH RECCA POM (025-025 PRECINCT)		Status UNIFORM MEMBER OF SERVICE		Sex MALE	Race WHITE	Dob [REDACTED]
Allegations						
1	Full Allegation FADO Force - Physical Force	Classification Arrest Effected	Allegation Index O-Other	Allegation Date 03/07/2018	Finding 04 - Info. and Intelligence	Finding Date 09/25/2018
	Comments Referred to CCRB for investigation under CCRB case # 2018-02133. Therefore, the allegation FADO Force-Physical Force will be closed as Information and Intelligence					
2	Full Allegation Use of Force - Level 3	Classification Arrest Effected	Allegation Index Force Investigation Notification	Allegation Date 03/08/2018	Finding 04 - Info. and Intelligence	Finding Date 09/25/2018
	Comments This investigation disclosed that on March 7, 2018, based on the use of force investigative responsibilities and reporting guide, this matter was investigated by the Internal Affairs Bureau as a Level 3 Use of Force due to the injuries sustained (fractures of 11th & 12th ribs) in connection with this incident. TRI report # [REDACTED]					

		was prepared in connection with this incident. As such, the allegation of Use of Force- Level 3 will be closed as Information and Intelligence.				
3	Full Allegation CCRB Informational Purposes Only -	Classification NOTIFICATION ONLY	Allegation Index CCRB INFO ONLY	Allegation Date 03/14/2018	Finding 04 - Info. and Intelligence	Finding Date 09/25/2018
	Comments Referred to CCRB for investigation under CCRB case # 2018-02133. Therefore, the allegation CCRB Information Purposes Only will be closed as Information and Intelligence					
4	Full Allegation Force - Physical Force	Classification Arrest Effectuated	Allegation Index O-Other	Allegation Date 11/05/2018	Finding 12 - Unsubstantiated	Finding Date 09/25/2018
	Comments On March 7, 2018, Deputy Inspector Theodore Federoff reported to the Command Center that on March 7, 2018, [REDACTED] sustained an injury in connection with arrest # [REDACTED] for Assault 2: Injury to Police/Fireman, Resisting Arrest, Obstruct Governmental Administration 2nd, and Criminal Possession of Controlled Substance 7th, inside of [REDACTED]. Medical records from Metropolitan Hospital Center revealed that [REDACTED] sustained two fractured ribs (11th & 12th ribs). [REDACTED] was interviewed and stated that when PO Recca and PO Kubic attempted to arrest him, he did have heroin in his pockets. He stated his hands were in his pockets and he pulled back to prevent the officers from grabbing his hands. [REDACTED] further stated that at one point the officers conducted a forcible take down on him where PO Recca got on top of him, kneed him once and punched him with a closed fist several times in his back as PO Kubic was holding his legs. The officers were interviewed in regards to this incident. PO Recca stated when he and PO Kubic were conducting routine patrol duties inside the location, they observed [REDACTED] on the 7th Floor stairwell with narcotics on his hands in plain view. PO Recca stated that as they went to arrest [REDACTED] he put his hands in his pockets, was non-compliant and was resisting arrest. PO Recca stated that as they attempted to get [REDACTED] hands, he punched him in the stomach and kicked PO Kubic in the knee. PO Recca stated that he then punched [REDACTED] once in the chest area, and then grabbed [REDACTED] in a bear hug. He stated [REDACTED] kicked off the wall causing both of them to fall to the ground. PO Kubic stated that he then got on top of [REDACTED] used his knees against [REDACTED] back in order to control him as he and PO Recca placed him in cuffs. Both officers denied punching, kicking or kneeing [REDACTED] in his back. Both officers stated that they observed [REDACTED] was wearing a black back brace which is normally used by people with back injuries and therefore they believe that the back brace worn by [REDACTED] was indicative of a pre-existing back injury. There are no witness or video recording of the incident to corroborate with the allegations made by [REDACTED]. This investigation disclosed that there is insufficient evidence to prove or disprove that the force utilized by the subject officers was unnecessary or excessive while attempting to place [REDACTED] under arrest. As such the allegation of Force -Physical Force will be closed as Unsubstantiated.					
5	Full Allegation Prisoner Incident - Injured in NYPD Custody - MOS Involved	Classification Arrest Effectuated	Allegation Index CI-Injured in Custody	Allegation Date 11/08/2018	Finding 04 - Info. and Intelligence	Finding Date 09/25/2018
	Comments On March 7, 2018, Deputy Inspector Theodore Federoff reported to the Command Center that on March 7, 2018, [REDACTED] sustained an injury in connection with arrest # [REDACTED] for Assault 2: Injury to Police/Fireman, Resisting Arrest, Obstruct Governmental Administration 2nd, and Criminal Possession of Controlled Substance 7th, inside of [REDACTED]. Medical records from Metropolitan Hospital Center revealed that [REDACTED] sustained two fractured ribs (11th & 12th ribs). As such, the allegation of Prisoner Incident - Injured in NYPD Custody - MOS Involved will be closed as Information and Intelligence.					

ATTACHMENT

1	 Disposition Letter to [REDACTED]
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2	 'Disposition Letter to PO Recca'
3	 'Disposition Letter to PO Kubic'
4	 'CCRB Case Closing'

Reporting Officer:	Rank DT3	Name HUSSAIN MOHAMMED	Tax Reg. No. 942784		Command G54-GROUP 54 - FORCE	
Reviewing Supervisor:	Manner of Closing 9 - UNSUBSTANTIATED	Date Reviewed 11/23/2018	Date of Next Review	Name CORRADO DERRICK		Supv. Tax No. 897238
Endorser:	Rank LCD	Name HAQUE SHAMSUL	Tax Reg. No. 933830	Command G54-GROUP 54 - FORCE	DateTime Reviewed 11/15/2018 20:42	Status Rejected
	Comments MINOR EDITS					
Endorser:	Rank LCD	Name HAQUE SHAMSUL	Tax Reg. No. 933830	Command G54-GROUP 54 - FORCE	DateTime Reviewed 11/19/2018 00:05	Status Approved
	Comments APPROVED.					
Endorser:	Rank DI	Name PARENTE MICHAEL	Tax Reg. No. 905618	Command G54-GROUP 54 - FORCE	DateTime Reviewed 11/19/2018 13:59	Status Rejected
	Comments UPDATE AS PER CO DIRECTION.					
Endorser:	Rank LCD	Name HAQUE SHAMSUL	Tax Reg. No. 933830	Command G54-GROUP 54 - FORCE	DateTime Reviewed 11/19/2018 16:31	Status Approved
	Comments APPROVED.					
Endorser:	Rank DI	Name PARENTE MICHAEL	Tax Reg. No. 905618	Command G54-GROUP 54 - FORCE	DateTime Reviewed 11/19/2018 16:49	Status Rejected
	Comments MINOR EDIT.					
Endorser:	Rank LCD	Name HAQUE SHAMSUL	Tax Reg. No. 933830	Command G54-GROUP 54 - FORCE	DateTime Reviewed 11/19/2018 16:57	Status Approved
	Comments APPROVED.					
Endorser:	Rank DI	Name PARENTE MICHAEL	Tax Reg. No. 905618	Command G54-GROUP 54 - FORCE	DateTime Reviewed 11/19/2018 17:00	Status Approved
	Comments					

APPROVED. I CONCUR WITH THE OVERALL CASE DISPOSITION OF UNSUBSTANTIATED. THIS CASE WAS REVIEWED FOR SUPERVISORY DEFICIENCIES WITH NO SUPERVISORY MISCONDUCT NOTED. THERE ARE NO MISSING TEAM LEADER REVIEWS. CASE CLOSED AS UNSUB.						
Endorser:	Rank INS	Name CORRADO DERRICK	Tax Reg. No. 897238	Command Z03-ZONE 3	DateTime Reviewed 11/23/2018 11:20	Status Approved
	Comments APPROVE					